

File No.: 11.17.001.010.228

BY ELECTRONIC CORRESPONDENCE

July 19, 2023

Decision regarding the complaint against Kpax Marketing Online Ltd

Based on the duties and powers conferred upon me by Article 57(1)(f) of Regulation (EU) 2016/679 on the protection of individuals with regard to the processing of personal data and on the free movement of such data, I have examined a complaint submitted to my Office on November 13, 2022, concerning the right of access under Article 15 of GDPR 2016/679 by XXXXX (hereinafter referred to as the Complainant) to personal data contained in documents of Kpax Marketing Online Ltd (hereinafter referred to as the Respondent).

2. On May 30, 2023, I identified a prima facie violation of Article 12(4) of GDPR 2016/679 by the Respondent. My conclusion was based on the fact that, as revealed by the investigation of the complaint, the Respondent did not inform the Complainant of the reasons for not acting and not fully satisfying his request from the outset, regarding the requested items 1-13 of his access request, as well as the possibility of lodging a complaint with a Supervisory Authority and the right to seek judicial remedy.

2.1 I reiterate and adopt the facts of the case, legal basis, reasoning, and conclusion of my Decision dated May 30, 2023. I emphasize that according to the provisions of Article 12(4) of GDPR 2016/679 and the Guidelines 1/2022 of the European Data Protection Board (EDPB), the data controller must act within one month of receiving the request from the data subject and inform about the reasons for not acting, the possibility of lodging a complaint with a supervisory authority, and seeking judicial remedy.

2.2 In the present case, no clarifications were requested after the data subject's request. The Respondent provided the Complainant with the documents it had identified while searching its records, which contained personal data and concerned exclusively the Complainant, clarifying that his request had been satisfied based on Article 15 of GDPR 2016/679.

2.3 There was no further information provided to the Complainant regarding the reasons for not satisfying the remaining pending requests, as well as regarding the provisions of Article 12(4). Explanations were only given after the filing of the present complaint and within the framework of its investigation. The response given on September 23, 2022, by the Respondent to the Complainant, stating that any information not provided does not fall within the interpretation of "personal data" under the Regulation, according to my Decision dated May 30, 2023, was insufficient.

2.4 The Respondent was requested to specify the reasons why it believes that no corrective measure or administrative sanction should be imposed within 3 weeks from the receipt of the prima facie Decision dated May 30, 2023.

2.5 The Respondent replied on June 20, 2023, stating among other things, the following:

(1) It believes that the explanation given to the Complainant that any information not provided does not fall within the interpretation of "personal data" under the Regulation is satisfactory and aligns with the conclusion of my Office in the Decision dated May 30, 2023. It also considers that the reference to the Complainant "we are following our strict personal data policy as developed according to the regulation, as we take the protection of personal data very seriously" implies that they could not proceed with satisfying his request without affecting the rights of others based on Article 15 of GDPR 2016/679, as was the conclusion of my Office's Decision.

(2) It believes that a narrow interpretation of the first part of Article 12(4), the piece ("If the controller does not take action on the request of the data subject..."), presupposes that no action has been taken by the data controller.

In the present case, the data controller had acted, initially obtaining the Complainant's consent to share his data with the lawyer representing him who submitted the access request on his behalf, and

subsequently providing him with the documents they deemed could be given to satisfy his request.

(3) The communication between the Respondent and the Complainant's lawyer remained open on their part, as they stated to the Complainant "If you are dissatisfied with this response, please let me know so that I can address any concerns." They believe that any alleged oversight on their part regarding the provisions of Article 12(4) could be related to the fact that the Complainant was represented by a lawyer and received the necessary legal advice regarding his rights, as they believe is the spirit under which Article 12(4) was enacted, namely that the data subject should be able to know about his rights and the existence of the Supervisory Authority to which he can turn. They do not believe that the rights of the Complainant have been harmed, as long as

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It had already received legal advice in relation to these matters from the outset, before approaching them.

(4) It also considers that part of the Complainant's request was excessive and unfounded, meeting the conditions of Article 12(5) of GDPR 2016/679, and the Complainant's request could be rejected as such. However, since the Respondent took action to satisfy as many requests as it could, it did not consider it necessary to further explain the reasoning of the statement, "the justification would be that they do not fall under the definition of Personal Data of the regulation."

(5) Taking the above into account, it believes that no fine or sanction of any kind should be imposed. It believes that the intentions of the Respondent towards the Complainant, his lawyer, and my Office were sincere, transparent, and in good faith. It continues to make efforts to further improve its practices in relation to the Data Protection Regulation and the relevant Guidelines. They have taken into account my Decision dated May 30, 2023, and will inform any future data subject regarding their rights, as mentioned in Article 12(4) of GDPR 2016/679, even though, in its opinion, the interpretation of this should not be made in its strict sense.

3. I remind that the data controller has the burden to explain to the data subject why it considers the request as "manifestly unfounded" in the event that it invokes the provisions of Article 12(5) of GDPR 2016/679, while according to the provisions of Article 12(4) of GDPR 2016/679 and the relevant Guidelines 1/2022, if the data controller refuses to act to satisfy a right of access in whole or in part, it must inform the data subject without delay and within one month of receiving their request, explaining the reasons, the right to appeal to the Supervisory Authority, and the right to seek judicial remedy (see paragraph 3.10 of my Decision dated May 30, 2023).

4. The Respondent focused its justification on the fact that it believed it had acted (at least in part) to satisfy the request of the data subject and that the data subject had already received the necessary legal advice from the lawyer representing him. This does not negate the obligation of the Respondent to satisfy the relevant provisions of the Regulation. If the Respondent had sufficiently explained its position on why it could not fully satisfy the Complainant's request, this current process might have been avoided. The one-word response that what was not provided does not fall under the interpretation of personal data does not help the data subject understand the reasons for the refusal to satisfy the remaining requests. Nor does the subsequent statement, "we are following our strict personal data policy as developed according to the regulation, as we take the protection of personal data very seriously," clarify what the Respondent means when it states that this implies that they could not proceed with satisfying the request without affecting the rights of others based on Article 15 of GDPR 2016/679.

4.2 Therefore, I do not share the view that the Respondent still holds, that it has sufficiently explained to the data subject the reason for not satisfying all requested elements, nor that Article 12(4) should be interpreted narrowly and according to the meaning attributed to it by the Respondent.

5. Taking the above into account, as well as the adoption of what I have mentioned in my Decision dated May 30, 2023, my conclusion is that the Respondent has violated the provisions of Article 12(4) of GDPR 2016/679, as it did not inform the Complainant of the reasons for which it did not act and did not fully satisfy his request from the outset, regarding the requested elements 1-13, as well as the possibility of submitting a complaint to a Supervisory Authority and the right to seek judicial remedy

(appeal to the courts).

5.1 Taking into account the powers granted to me by Article 58(2)(b) of GDPR 2016/679, as well as the commitment of the Respondent that it will apply the provisions of Article 12(4) of GDPR 2016/679 in the manner interpreted by my Office in the future, I have decided not to impose any administrative fine on the Respondent. However, I issue the administrative sanction of a Warning for the violation of the provisions of Article 12(4) of GDPR 2016/679.

6. This Decision may be considered as a precedent in the event of a recurrence of the same violation by the Respondent.

Peace Loizidou Nikolaidou
Commissioner for Personal Data Protection